

23NWCV03447 23NWCV03447

County: los-angeles

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Case Number: 23NWCV03447 Hearing Date: September 24, 2026 Dept: P

CORTES-VIDALES v. GENERAL MOTORS, LLC, ET AL.

CASE NO.: 23NWCV03447

HEARING: 09/24/2026 @

9:30 AM

#4

TENTATIVE ORDER

I.

Plaintiff's motion for attorney's fees is
GRANTED in the total amount of \$18,380.

II.

The Court will consider costs at the
hearing on Defendant's upcoming motion to strike or tax costs.

Moving party to give notice.

Plaintiff Delfino Cortes-Vidales (Plaintiff) moves for an
award of attorney's fees and costs.

Background

On October 26, 2023, Plaintiff filed this lemon law action
against Defendants General Motors, LLC (Defendant), UAG Cerritos I, LLC dba

Penske Chevrolet of Cerritos, and Does 1 through 20. This action arises out of alleged defects and nonconformities to warranty that Plaintiff experienced with his purchase of a new 2020 Chevrolet Traverse. (Complaint, ¶¶ 6-9.) The complaint asserts two causes of action: (1) Breach of Implied Warranty of Merchantability under the Song-Beverly Warranty Act and (2) Breach of Express Warranty under the Song-Beverly Warranty Act.

On December 10, 2025, Plaintiff filed a Notice of Settlement of Entire Case indicating that the parties entered into a conditional settlement.

Legal Standard

The Song-Beverly Consumer Warranty Act provides for the award of attorneys' fees to prevailing plaintiffs as follows:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code, § 1794, subd. (d).)

"Courts have uniformly held that the party moving for statutory attorney fees or sanctions has the burden of proof." (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247, citation omitted.) The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (Bruckman v. Parliament Escrow Co. (1989) 190 Cal.App.3d 1051, 1062.) When assessing the amount of any attorney's fee award, courts typically determine what is reasonable through the application of the "lodestar" method. Under the lodestar method, a base amount is calculated from a compilation of (1) time reasonably spent and (2) the reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48); see also Meister v. Regents of University of California (1998) 67 Cal.App.4th 437, 448-449 [holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation].)

Discussion

Plaintiff moves for an award of attorney's fees and costs in the amount of \$24,420.48, including \$22,965 in attorney's fees and \$1,453.48 costs.

Entitlement to Fees

Plaintiff argues that he is the prevailing party pursuant to the parties' settlement agreement via Defendant's Code of Civil Procedure section 998 offer. (Nita Decl., ¶ 15.) Defendant does not dispute that Plaintiff is the prevailing party and thus entitled to reasonable attorney's fees and costs.

Accordingly, Plaintiff is entitled to reasonable attorney's fees and costs.

Reasonableness of the Hourly Rates

A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in his court [...]." (Ibid.) "[R]ate determinations in other cases, particularly those setting a rate for the plaintiffs' attorney, are satisfactory evidence of the prevailing market rate." (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.) "Courts have uniformly held that the party moving for statutory attorney fees or sanctions has the burden of proof." (Mikhaeilpoor, supra, 48 Cal.App.5th at p. 247, citation omitted.)

Plaintiff's counsels' fees and experience are summarized as follows:

Name

Position

Years of Experience

Hourly Rate

M. Nicholas Nita

Principal & Managing Partner (Nita Law Firm)

23

\$625

Justin Wisnewski

Associate Attorney

3

\$400

Madalina Costescu

Certified Paralegal

18

\$250

Jovanna Garay

Certified Paralegal

9

\$250

Kaylee Can Wang

Law Clerk

Since 2022

\$250

Jennifer Cruz

Legal Assistant

2

\$150

Elena Olsen-Valdez

Settlement Coordinator

N/A

\$200

Andrew Kim

Legal Assistant

N/A

\$150

Alex Martinez

Legal Assistant

N/A

\$150

(Nita Decl., ¶¶ 16-35.)

Plaintiff argues that the hourly rates are reasonable based on the risks of taking a case on a contingency basis and rates approved in prior cases.

In opposition, Defendant argues that Mr. Nita's hourly rate should be reduced to \$450 and Mr. Wisnewski's to \$350. Defendant contends the Court should use the 2023 "Real Rate Report: The Industry's Leading Analysis of Law Firm Rates, Trends, and Practices" (Real Rate Report) and the General Liability by City data set for Los Angeles. Defendant emphasizes that the hourly rate is based on the prevailing rate of "or private attorneys in the community conducting noncontingent litigation of the same type." (Ketchum v. Moses (2001) 24 Cal. 4th 1122, 1133.)

Here, the Court finds a reduction to \$600 reasonable based on review of both parties' evidence and Mr. Nita's experience. The Court does not adjust Mr. Wisnewski's hourly rate.

Of the 18.3 hours billed by Mr. Nita as put forth through the billing records, this amounts to a reduction of \$457.50.

Reasonableness of the Fees

The Court is vested with discretion to determine which claimed hours were reasonably spent and what an attorney's reasonable hourly rate is. (Dover Mobile Estates v. Fiber Form Products, Inc. (1990) 220 Cal.App.3d 1494, 1501; see also Flannery v. California Highway Patrol (1987) 61 Cal.App.4th 629, 644 ["We readily acknowledge the discretion of the trial judge to determine the value of professional services rendered in his or her court."].) "As the plain wording of section 1794, subdivision (d) makes clear, the trial court is 'to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.'" (Mikhaeilpoor, supra, 48 Cal.App.5th at p. 247, citation omitted.) "[C]ounsel's' time records [should be used] as the starting point for [a court's] lodestar determination." (Horsford v. Board of Trustees of CSU (2005) 132 Cal.App.4th 359, 397.) In assessing a motion for attorney's fees, "[a] trial court may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended." (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 38.)

Plaintiff seeks \$22,965 in attorney's fees, representing 62 hours of work, based on the nature and complexity of the litigation and

Plaintiff's counsel's skill and expertise. Plaintiff supplies Plaintiff's counsel's billing records in support of the fee request. (Nita Decl., Exh. A.)

In opposition, Defendant argues that Plaintiff's request does not reflect fees that were actually or reasonably incurred. Defendant seeks reductions arising out of pre-engagement work, clerical and administrative work, the use of templates, the instant motion, and other non-compensable inefficiencies.

Defendant first requests the Court reduce \$300 for pre-engagement work done prior to the preparation of the retainer agreement. Plaintiff argues that pre-litigation fees are recoverable under the Song-Beverly Act. (Civ. Code, § 1794, subd. (d) [includes fees "reasonably incurred by the buyer in connection with the commencement and prosecution of such action."].) While pre-litigation fees are permitted, they must be reasonably incurred. The Court agrees with Defendant's argument that preparing the "Lemon Law Representation Agreement" is an overhead business expense and reduces the 0.2 hours claimed on 10/11/2023 for a total reduction of \$40.

Based on the use of templates, Defendant requests the Court reduce 7.3 hours for templated Motions in limine; 4 hours for templated trial documents; 3 hours for templated discovery requests and notices of deposition; and 1.5 hours for a templated complaint. Defendant argues that these documents are based on templates with little variation based on case. Defendant provides Motions in Limine in the instant action compared to that of a prior action to support this argument. (Bowton Decl., compare Exh. I, with Exh. J.) Defendant provides trial documents from this action compared with a prior action. (Bowton Decl., compare Exh. K, with Exh. L.) Defendant does the same with the complaint (Bowton Decl., compare Exh. A, with Exh. B) and deposition requests and notices. (Bowton Decl., compare Exh. C with Exh. D, Exh. E with Exh. F, and Exh. G with Exh. H.)

In reply, Plaintiff contends that the use of templated documents is factored into the hourly requests. Plaintiff emphasizes that 6.5 hours of the 7.8 hours requested for the Motions in Limine were billed by paralegals at their hourly rates. Plaintiff notes that he noticed two depositions and for each, only 0.3 hours at paralegal rates and 0.1 hours at attorney rates were billed.

Here, the Court finds the 1.5 hours billed for the complaint

and 3.5 hours for the deposition notices reasonable. Based on the confirmed use of templates, the Court agrees that 6.5 hours of paralegal time for the Motions in Limine, excluding attorney review, is excessive. The Court reduces 4 hours on 11/10/2025 for a total reduction of \$1,000. Further, based on the confirmed use of templates, the Court reduces 0.5 hours for review of the trial documents on 12/1/2025 for a total reduction of \$312.50.

Defendant next seeks a reduction of 10.7 hours for clerical and administrative work throughout this action for calendaring, filing or preparing for filing, serving, creating folders, processing documents, and internal communications. Defendant shows that there are 57 separate entries for “serv[ing],” “[p]reparing file for” court appearances, “calender[ing].” (Nita Decl., Exh. A.) Plaintiff contends that Defendant does not point to exact tasks. Plaintiff also argues that these tasks such as calendaring or preparing the file require legal training.

The Court agrees that these tasks are non-compensable as they are purely administrative/clerical. (See *Save Our Uniquely Rural Community Environment v. County of San Bernardino*, (2015) 235 Cal.App.4th 1179, 1187 [finding that calendaring, internal filing, preparing proof of service are examples of tasks that have been found to be purely clerical and potentially excessive]; see also *Collins v. City of Los Angeles* (2012) 205 Cal.App.4th 140, 159 [characterizing filing and serving documents as “noncompensable administrative tasks”].) Upon review of the billing records the Court reduces entries between 10/26/2023 and 10/30/2023 for retrieving conformed copies of documents and calendaring (\$275); calendaring on 11/2/2023 and 11/22/2023 (\$75); calendaring and serving on 12/19/2023 and 1/18/2024 (\$125); calendaring and filing on 2/2/2024, 2/15/2024, 2/22/2024, 3/12/2024, 5/15/2024, 7/30/2024, 9/4/2024, 9/10/2024, 10/14/2024, 11/12/2024, 12/17/2024, 12/20/2024, 3/25/2025, 4/7/2025, 5/15/25, 10/27/2025, 11/10/2025, 12/1/2025, 12/3/2025, 12/10/2025, 12/10/2025, 12/15/2025 (\$1,100). Thus, there is a total reduction of \$1,575 for purely administrative and clerical tasks.

Defendant additionally seeks a 7.1 hour reduction out of 9.6 hours billed or anticipated to be billed related to this motion. Here, the Court reduces 2 hours of hours billed between 5/1/2026 and 5/8/2026 as 6.2 hours for reviewing the billing, drafting the moving papers, and reviewing the drafts is unreasonably excessive given counsel's experience. This is a total reduction of \$1,200 (based on the reduced hourly rate of \$600).

Lastly, the Court does not make reductions based on excessive communications to Plaintiff as Defendant fails to establish that they are unreasonable. The Court also does not make any reductions based on over-staffing as there were only two attorneys staffed on this case.

Accordingly, based on the reasonableness of the fee request, the Court reduces \$4,127.50. Together with the reasonableness of the hourly rates, the Court reduces a total of \$4,585.

In sum, Plaintiff's motion for attorney's fees is GRANTED in the total amount of \$18,380.

This ruling does not address Plaintiff's request for costs.

Based on Defendant's pending motion to strike or tax costs, the Court will rule on costs on the scheduled hearing date.